

26STCP01850 26STCP01850

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-17

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Case Number: 26STCP01850 Hearing Date: September 17, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Jacqueline

Denham's Petition to Vacate Arbitration Award is dismissed.

Analysis:

On May 14, 2026, Petitioner Jacqueline Denham ("Petitioner") filed the instant Petition to Vacate Arbitration Award against Respondent Vision ASU, LLC ("Respondent"). The Court set the Petition for hearing on September 17, 2026 and ordered Petitioner to give notice of the hearing date to Respondent. (Notice of Hearing, 05/14/26.) No proof of service of the Petition or Notice of Hearing has been filed to date. No response to the Petition has been filed to date.

Legal Standard

"Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondent all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

A petition to vacate

or correct an arbitration award, or a response to a petition to confirm arbitration award that seeks to vacate or correct the award must be served and filed no later than 100 days after the date of the service of a signed copy of the award on the respondent, or within ten days of service of the petition to confirm, whichever is sooner. (Code Civ. Proc., §§ 1288, 1288.2, 1290.6; Valencia v. Mendoza (2024)103 Cal. App. 5th 427, 445.)

The court must confirm the award as made, unless it corrects or vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286; Valsan Partners Limited Partnership v. Calcor Space Facility, Inc. (1994) 25 Cal.App.4th 809, 818.)

Discussion

Filing Requirements of a Petition to Confirm Arbitration Award (CCP § 1285.4)

Code

of Civil Procedure section 1285.4 states: "A petition under this chapter shall:

(a)

Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement.

(b)

Set forth the names of the arbitrators.

(c) Set forth

or have attached a copy of the award and the written opinion of the arbitrators, if any."

(Code Civ. Proc., § 1285.4 (emphasis added).) The Petition neither sets forth the substance of the arbitration agreement, nor attaches a copy of the arbitration agreement or award. (Pet., ¶4.) In fact, the Petition includes no attachments. The Petition only provides the name of the arbitrator, Eric Blum. (Pet., ¶6.) Therefore, the Petition does not satisfy the requirements of Code of Civil Procedure section 1285.4.

Service of the Petition and Notice of Hearing (CCP § 1290.4)

Code of Civil Procedure

section 1290.4 states in pertinent part:

“(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: ¶ (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.”

(Code Civ. Proc., § 1290.4.) Without a copy of the arbitration award attached to the Petition, the Court must require that service of the Petition and Notice of Hearing comports with the requirements for service of a summons. As noted above, no proof of service of the Petition or Notice of Hearing has been filed to date. The statutory service requirements of Code of Civil Procedure section 1290.4, therefore, are not satisfied.

Service of the Arbitration

Award (CCP § 1283.6)

Code of Civil Procedure section 1283.6

provides that: “The neutral arbitrator

shall serve a signed copy of

the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” (Emphasis added.)

This requirement may be satisfied by service by the arbitrator, or upon proper service of the award with the Petition. (See *Murry v. Civil Service Employees Ins. Co.* (1967) 254 Cal.App.2d 796, 799-800.)

The Petition states that

the award was served on the parties on May 4, 2026 but attaches no proof of this service. Nor was the award served with the Petition. Therefore, the requirements of Code of Civil Procedure section 1283.6 are also not met.

Timing of Service of Petition (CCP §
1288)

A response to a
Petition to Confirm Arbitration Award that seeks to vacate or correct the award
must be served and filed no later than 100 days after the date of the service
of a signed copy of the award on the respondent, or within ten days of service
of the Petition to Confirm, whichever is sooner. (Code Civ. Proc., §§
1288.2, 1290.6; Valencia v. Mendoza (2024)103 Cal. App. 5th
427, 445.) Petitioner has not demonstrated
service of the arbitration award and service of the instant Petition, thus, the
Court cannot find that the Petition is timely under Code of Civil Procedure
section 1288.

Conclusion

Based on the
lack of compliance with any of the mandatory requirements for service and
presentation of the Petition to Vacate Arbitration Award, Petitioner Jacqueline
Denham's Petition to Vacate Arbitration Award is dismissed.

Judicial Assistant is to give notice.